

so far as their requirements for home consumption extend, to have that portion allotted among themselves in the proportions of the percentages to which they are entitled as above.

Where any proportion of the allotment of one of the Governments is not taken up by that Government, that Government shall, when the phosphates are sold, be credited with the amount of the cost price as fixed by the Commissioners under the first paragraph of Article 11; but if such phosphates are sold to a purchaser other than one of the Governments, any profit above the said cost price shall be carried to the surplus fund mentioned in Article 12.

ARTICLE 15.

The Agreement shall come into force on its ratification by the Parliaments of the three countries.

Dated this second day of July in the year of Our Lord one thousand nine hundred and nineteen.

Signed by the Right Honourable
David Lloyd George for and on
behalf of His Majesty's Govern-
ment in London, in the presence
of—

ERNEST EVANS.

(Signed) D. LLOYD GEORGE.

Signed by the Right Honourable
William Morris Hughes for and
on behalf of the Government of
the Commonwealth of Australia
in the presence of—

R. R. GARRAN.

(Signed) W. M. HUGHES.

Signed by the Right Honourable
William Ferguson Massey for
and on behalf of the Govern-
ment of the Dominion of New
Zealand in the presence of—

R. R. GARRAN.

(Signed) W. F. MASSEY.

CHAPTER 28.

An Act to amend the Law with respect to the supply
of Gas. [4th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and
with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows :

Price and Quality of Gas.

Power to sub-
stitute new
basis of
charges.

1.—(1) The Board of Trade may, on the application of any
gas undertakers, by order, provide for the repeal of any enact-
ments or other provisions requiring the undertakers to supply
gas of any particular illuminating or calorific value, and for

substituting power to charge for thermal units supplied in the form of gas.

(2) An order under this section may provide for modifying the statutory or other provisions affecting the charges which may be made by the undertakers, by substituting for the standard or maximum price authorised under those provisions a standard or maximum price for each hundred thousand British thermal units (in this Act referred to as "a therm").

(3) The standard or maximum price per therm fixed by the order shall be a price corresponding as nearly as may be to that fixed by those provisions for each thousand cubic feet, but with such addition as appears to the Board reasonably required in order to meet the increases (if any) due to circumstances beyond the control of, or which could not reasonably have been avoided by, the undertakers, which have occurred since the thirtieth day of June nineteen hundred and fourteen in the costs and charges of and incidental to the production and supply of gas by the undertakers; and the order may make such modifications of any provisions whereby the rate of dividend payable by the undertakers or any other payment is dependent on the price of gas supplied as appear to the Board to be necessary:

Provided that, if at any time it is shown to the satisfaction of the Board of Trade that the costs and charges of and incidental to the production and supply of gas have substantially altered from circumstances beyond the control of, or which could not reasonably have been avoided by the undertakers, the Board may, if they think fit, on the application of the undertakers or of the local authority, or, where the local authority are the undertakers, of twenty consumers, make an amending order correspondingly revising the powers of charging authorised by the original order.

(4) An order under this section—

(a) shall prescribe the time when and the manner in which the undertakers are to give notice of the calorific value of the gas which they intend to supply (in this Act referred to as the declared calorific value), and shall require that such notice shall at the same time be published in the London, or Edinburgh, or Dublin Gazette; and

(b) shall require the undertakers, in the case of alteration in the declared calorific value, to take at their own expense such steps as may be necessary to alter, adjust, or replace the burners in consumers' appliances in such manner as to secure that the gas can be burned with safety and efficiency, except in the case of any consumer who objects to such alteration, adjustment, or replacement by the undertakers; and

(c) may prescribe, subject to such conditions as the Board may think necessary, the additional charge

per therm which the undertakers may make in respect of gas supplied by means of prepayment meters; and

- (d) may make such supplemental and consequential provisions as appear necessary to give full effect to the order; and
- (e) shall come into operation on such date as may be fixed by the order; and
- (f) shall have effect as if enacted in this Act.

(5) If within two years after the passing of this Act any undertakers have not applied to the Board of Trade for an order under this section, the Board of Trade may, after giving not less than three months' notice to the undertakers, make an order applying to those undertakings, which shall have the same effect as an order made on the application of the undertakers.

(6) Before making any order under this section, the Board of Trade shall, where the order is made on the application of undertakers, require the undertakers to give, and in any other case shall themselves give public notice in the London or Edinburgh or Dublin Gazette as the case may be and in such other manner as the Board may consider best adapted for informing persons affected, of the application for or proposal to make an order, and of the maximum or standard price per therm proposed, and as to the manner in which and time within which objections may be made, and shall consider any objection which may be duly made, and shall, where they think it expedient to do so, cause an inquiry to be held. The notice to be given under this section shall include notice to the local authority.

(7) The calorific value of gas means, for the purposes of this Act, the number of British thermal units (gross) produced by the combustion of one cubic foot of the gas measured at sixty degrees Fahrenheit under a pressure of thirty inches of mercury and saturated with water vapour.

Composition
and pressure
of gas to be
supplied.

2.—(1) Where an order under this Act has been made affecting any undertakers, the gas supplied by those undertakers, in addition to conforming to the conditions prescribed in the order, shall comply with the following conditions, that is to say :—

- (i) it shall not contain any trace of sulphuretted hydrogen when tested in accordance with this Act;
- (ii) it shall be supplied at not less than the minimum permissible pressure :

Provided that the foregoing requirements shall not apply as respects a separate supply of gas by any undertakers for industrial purposes only, but an order may impose such other conditions with regard to gas supplied by those undertakers for those purposes as appear necessary to the Board of Trade.

(2) The minimum permissible pressure shall be such pressure in any main, or in any pipe laid between the main and the meter having an internal diameter of two inches and upwards, as to

balance a column of water not less than two inches in height, except as may be otherwise provided by the order relating to any undertaking, and different minima may be specified for different parts of an undertaking, or for gas of different calorific values.

(3) Where any undertakers are, at the time when an order is made with respect to them under this Act, under a statutory obligation to comply with conditions in relation to pressure which are in excess of the provisions as to pressure contained in this section, the order shall make such provisions as appear necessary to the Board of Trade for preserving these conditions, and this Act shall, in its application to those undertakers, have effect as though such last-mentioned provisions were substituted for the provisions of this section as to pressure.

(4) The Board of Trade shall, as soon as may be after the passing of this Act, cause inquiries to be held into the question whether it is necessary or desirable to prescribe any limitations of the proportion of carbon monoxide which may be supplied in gas used for domestic purposes, and into the question whether it is necessary or desirable to prescribe any limitations of the proportion of incombustible constituents which may be supplied in gas and may, if on any such inquiry it appears desirable, make one or more special orders under this Act prescribing the permissible proportion in either case, and any such special order may have effect either generally or as regards particular classes of undertakings, and the provisions of the special order shall have effect as if they were enacted in this section.

3. It shall not be lawful for any person to charge for the supply of gas according to the number of British thermal units supplied unless authorised to do so under this Act or by special Act of Parliament.

Restriction on power to charge for thermal units.

Testing of Gas.

4.—(1) The Board of Trade shall appoint three persons, at least one of whom shall be a person having practical knowledge and experience in the manufacture and supply of gas, to act as gas referees.

Appointment of gas referees and examiners.

The Board of Trade shall also appoint a competent and impartial person to be chief gas examiner.

The gas referees and the chief gas examiner shall hold office for such time and on such conditions as the Board of Trade may direct, and may, with the consent of the Board of Trade, appoint such assistants as may be necessary for the proper discharge of their duties.

(2) Two of the gas referees shall be a quorum and at least two of the gas referees shall concur in every act or determination of the gas referees.

(3) The local authority may, unless they are themselves the undertakers, appoint a competent and impartial person to be a gas examiner, and subject to the prescription of the gas referees to test the gas and the pressure at which the gas is supplied :

Provided that—

- (a) for the purposes of this section, a gas examiner may be appointed to act on behalf of any number of local authorities, and the local authorities may enter into such arrangements as they think fit in regard to the joint appointment and employment of such gas examiner; and
- (b) any county council may, if they think fit, with the consent of any other local authority within the county, appoint a gas examiner, who shall have the same powers as if he were appointed by that local authority.

(4) Where no gas examiner is appointed by the local authority, or where the testing of gas is imperfectly attended to, quarter sessions, on the application of not less than five consumers, may appoint a competent and impartial person to act as gas examiner, who shall have the same powers and perform the same duties as if he were appointed by the local authority, and the remuneration and expenses of the gas examiner up to an amount approved by quarter sessions shall be paid by the local authority.

Power to pre-
scribe tests.

5.—(1) The gas referees shall prescribe—

- (a) the places and times at which and the apparatus and method by which tests, whether continuous or intermittent, shall be made to ascertain whether any undertakers with respect to whom an order has been made under this Act are supplying gas in accordance with their obligations; and
- (b) the method by which any such apparatus shall be verified; and
- (c) the time and form of the reports to be made by the gas examiner to the gas referees and the local authority or quarter sessions by whom he is appointed, and to the undertakers, and the means by which the results of the tests shall be made available to the public:

Provided that, unless otherwise agreed between the undertakers and the authority by whom the gas examiner is appointed, any testing place provided by the undertakers in pursuance of any special or other Act of Parliament relating to the undertaking shall be deemed to be a prescribed testing place under this section, but the gas referees may, if they think fit, prescribe any additional testing place in respect of that undertaking.

(2) The prescribed apparatus shall, in the case of any undertakers who have sold in the preceding year more than one hundred million cubic feet of gas, and in any other case in which it appears necessary to the gas referees, include a calorimeter for the production of a continuous record of the calorific value of the gas which is being supplied.

(3) Any undertakers with respect to whom an order has been made under this Act shall provide and maintain to the satisfaction of the referees the prescribed testing places and apparatus, and shall give any gas examiner access to any testing place for the proper execution of his duty.

(4) A representative of the undertakers may be present on any occasion on which the gas examiner inspects, or alters, adjusts or replaces the testing apparatus or tests the gas, but shall not interfere with the inspection, alteration, adjustment or replacement, or test.

For the purposes of this subsection, the gas examiner shall, in cases where the testing place is situated elsewhere than on the works of the undertakers, give to the undertakers reasonable notice of the time at which he will attend at the testing place.

(5) The gas referees may, at any time where it appears to them necessary for the proper execution of their duties, enter upon and inspect any of the works of the undertakers, and the undertakers shall afford them and their assistants full facilities for this purpose, and shall furnish the referees with such information with regard to the position of the mains and pipes of the undertakers, and with regard to any other matter as the referees may reasonably require.

6.—(1) If the undertakers or the local authority think themselves aggrieved by any prescription of the gas referees, they may, within one month from the making of such prescription, appeal to the chief gas examiner, who, after hearing the parties and any other body or person appearing to him to be interested, may confirm, with or without amendment, or annul the prescription, and the decision of the chief gas examiner shall be final and conclusive.

Appeals to
chief gas
examiner.

(2) If the undertakers think themselves aggrieved by any report of a gas examiner, they may, within seven days, appeal to the chief gas examiner, who may confirm, with or without amendment, or annul the report, and whose decision, after hearing the parties, shall be final and conclusive.

(3) The report of a gas examiner (including any such report as amended by the chief gas examiner) showing any failure to comply with the provisions of this Act or any order thereunder as to the calorific value, purity, pressure, or composition of gas, shall be conclusive evidence of the liability of the undertakers to a forfeiture in respect thereof.

(4) Any decision of the chief gas examiner purporting to have been signed by him shall, for all purposes and to all intents, be *prima facie* evidence of the due making and signing thereof without proof of such signature.

7.—(1) The salaries, remuneration, pensions, and gratuities of the chief gas examiner and the gas referees and their assistants shall be such as the Board of Trade with the consent of the Treasury may fix.

Remunera-
tion and
expense of
gas referees.

- (2) (a) Any such salaries, remuneration, pensions, or gratuities; and
- (b) any expenses of the chief gas examiner and the gas referees in the execution of their duties or powers under this Act; and
- (c) any expenses of the Board of Trade which in the opinion of the Treasury are directly attributable to the execution of their powers and duties under this Act;

shall be paid out of the fund established under this section :

Provided that during the first two years after the passing of this Act the expenditure for the purposes aforesaid shall to the extent that may be necessary be paid out of moneys provided by Parliament, but such payments shall be treated as advances, and shall be repaid out of that fund, with interest at such rate and by such instalments, as the Treasury may fix, in the next three succeeding years.

(3) Any undertakers with respect to whom an order under this Act has been made, shall, on or before the first day of April in each year, pay to a fund (to be called the gas fund) a contribution not being at the rate of more than three shillings for each million cubic feet of gas sold by them in the preceding year, and the Treasury may determine that that fund shall be a public fund within the meaning of the Superannuation Act, 1892.

55 & 56 Vict.
c. 40.

(4) The Board of Trade shall, not later than the fifteenth day of January in each year, prescribe the rate at which such contribution shall be payable for that year (which shall not exceed the rate reasonably required to meet the estimated expenditure for the year), and the manner in which and the account to which the contribution shall be paid, and the amount payable by the undertakers shall be a debt due by the undertakers to the Crown, and shall be recoverable accordingly with costs.

(5) The Board of Trade shall, as soon as may be after the thirty-first day of March in every year, cause the accounts of the gas fund for the preceding year to be laid before Parliament.

Forfeiture and Penalties.

Penalties
for failure to
comply with
prescription
of gas referees.

8. If the undertakers fail to comply with any lawful prescription of the gas referees, or to provide or maintain any testing place, apparatus or materials, or any other matter or thing prescribed therein, or to afford to the gas examiner or gas referees access to any testing place or works in accordance with the requirements of this Act, or to afford or furnish any facilities or information in accordance with the requirements of this Act, the undertakers shall be liable on summary conviction to a fine not exceeding twenty-five pounds, or in the case of a continuing offence twenty-five pounds for each day after such conviction during which such offence continues :

Provided that no proceedings under this section shall be taken—

- (a) unless the Board of Trade, after giving the undertakers an opportunity of being heard, consent thereto; and
- (b) in the case of the failure to comply with any lawful prescription, until after the expiration of the period within which the undertakers may under this Act appeal against the prescription; or
- (c) if the undertakers have appealed as aforesaid, unless or until either such appeal is withdrawn or the chief gas examiner has given a decision thereon.

9.—(1) If on any day for a period of two hours or upwards the calorific value of gas supplied by any undertakers, ascertained in accordance with the provisions of this Act, is more than five per cent. below the declared calorific value, the undertakers shall be liable on summary conviction to a forfeiture not exceeding five pounds for every complete one per cent. by which the calorific value is deficient in excess of such five per cent. :

Forfeiture
for deficient
calorific value,
&c.

Provided that, where there is no continuous record of the calorific value of the gas supplied by any undertakers, if on any occasion of testing the calorific value at any testing-place is found to be more than five per cent. below the declared calorific value a second testing shall be made on the same day after an interval of not less than one hour and the mean of the two testings shall be deemed, for the purposes of this subsection, to be the calorific value of the gas supplied by the undertakers at that testing-place for a period of two hours ascertained as aforesaid.

(2) If on any occasion the gas does not conform to the provisions of this Act or any order made thereunder as to purity or pressure, the undertakers shall be liable on summary conviction to a forfeiture not exceeding ten pounds.

(3) The undertakers shall not be liable to any forfeiture under this section in any case where they show that the deficiency or failure was due to circumstances not within their control, nor shall the undertakers be liable for more than one forfeiture in respect of any one day for any deficiency in calorific value, composition, or pressure of gas supplied from any one works.

(4) If in any quarter the average calorific value of the gas supplied by any undertakers, ascertained in manner prescribed by the gas referees, is less than the declared calorific value, a sum which the chief gas examiner shall determine to be as nearly as may be the amount by which the revenue of the undertakers has been improperly increased shall,—

- (a) if the undertakers are a local authority, be applied towards a reduction in the price of gas in the next or some succeeding quarter; and
- (b) in any other case, be deducted from the amount applicable to payment of dividend on the ordinary capital

of the undertakers for the year or half-year in which such quarter occurs, and carried forward to the credit of the revenue account for the next following year or half-year in addition to any other amount which would otherwise have been so carried forward, and the dividend which the undertakers may pay on their ordinary capital in respect of such first-mentioned year or half-year shall be correspondingly reduced; and

- (c) in every case the amount so ascertained shall be shown in the accounts of the undertakers as a separate item until the undertakers have shown to the satisfaction of the Board of Trade that it has been applied to a reduction in the price of gas.

For the purposes of this provision, the expression "quarter" means the three months commencing on the first day of January, the first day of April, the first day of July, and the first day of October in any year.

(5) Proceedings against the undertakers in respect of any forfeiture incurred under this Act may be commenced at any time within three months after the date of the report of the gas examiner, or after the date of the report of the chief gas examiner on appeal, or, in the event of the undertakers duly appealing to the chief gas examiner and withdrawing the appeal, within three months after the date of the receipt of notice of such withdrawal.

(6) If, on an appeal to the chief gas examiner, he certifies that the default of the undertakers is not substantial or not due to the careless conduct of the undertakers or of their servants, no summary proceedings shall be taken in respect of the default, but the chief gas examiner may by order determine the amount (not exceeding the amount prescribed by subsection (1) or subsection (2) of this section as the forfeiture for the default) of the forfeiture to be paid by the undertakers, and any such order shall have effect as if it were an order of a court of summary jurisdiction.

Power to make Special Orders.

Power to
make special
orders.
33 & 34 Vict.
c. 70.

10.—(1) Anything which under the Gas and Water Works Facilities Act, 1870, or any Act amending the same, may be effected by a provisional order confirmed by Parliament may, so far as those enactments relate to gas, be effected by a special order made on the application of any local authority, company, or person by the Board of Trade under and in accordance with the provisions of this section, and for the purposes of the powers conferred by this section the Gas and Water Works Facilities Act, 1870, shall have effect as though section fifteen thereof, which excludes the Metropolis from the operation of the Act, were omitted therefrom.

(2) Without prejudice to the generality of the powers conferred by this section, the Board of Trade may, by any such special order—

- (a) empower any undertakers to obtain a supply of gas in bulk from any source whether situated within or without their authorised limits of supply :
- (b) empower any undertakers to give a separate supply of gas for industrial purposes within their authorised limits of supply :
- (c) authorise any local authority which may be authorised to supply gas within their district to supply gas outside the district in any area which is not supplied with gas by any other undertakers or which is within the area of supply of any undertakers whose undertaking has been acquired by such local authority :
- (d) authorise arrangements for the purchase by agreement, joint working or amalgamation of undertakings, including necessary provisions with regard to the capital of the combined undertaking, the vesting of the property and rights of the purchased or amalgamated undertakings, and other necessary incidents and consequences of purchase, amalgamation or joint working :
- (e) authorise the establishment of superannuation, pension and other like funds :
- (f) authorise the raising of capital or the borrowing of money for any of the purposes aforesaid :
- (g) make provision for the purchase or redemption (out of revenue or otherwise) and cancellation of debentures, debenture stock, mortgages or bonds, or of obsolete or unproductive capital, or capital not represented by available assets :
- (h) modify or amend the provisions of any special Act or other provision relating to the undertaking affected by the special order as may be necessary to provide for the proper and efficient conduct of the undertaking :
- (i) make such supplemental and consequential provisions as appear necessary to give full effect to the order.

(3) Sections eighty and eighty-one of the Factory and Workshop Act, 1901, which relate to the making of regulations under that Act, as set out and adapted in the Schedule to this Act, shall apply to the making of special orders under this Act. 1 Edw. 7.c. 22.

(4) Before any special order under this Act is made, it shall be laid in draft before both Houses of Parliament, and such order shall not be made unless both Houses, by resolution, approve the draft, either without modification or addition or with modifications or additions to which both Houses agree, but upon such approval being given the Board of Trade may make the order in the form in which it has been approved, and the order on being so made shall be of full force and effect.

(5) For the purposes of any Act of Parliament, whether passed before or after this Act, which refers directly or indirectly to a special Act conferring powers on gas undertakers, a special order under this Act shall be deemed to be a special Act.

General.

Fees for
examination
of meters.

22 & 23 Vict.
c. 66.

11. The fees for the examination, comparison and testing, with or without stamping, of meters, shall be such as may be determined from time to time by the Board of Trade, and section nineteen of the Sale of Gas Act, 1859, is hereby repealed :

Provided that the fees fixed by the said section shall, notwithstanding such repeal, continue to be chargeable unless and until altered by the Board of Trade under the powers conferred by this section.

Application
of ss. 5 & 6 of
4 Edw. 7. c. 28.

12. The powers and duties of the Board of Trade under sections five and six of the Weights and Measures Act, 1904, in relation to regulations with respect to measuring instruments and certificates of suitability for use of certain appliances, shall extend to instruments for measuring gas and patterns thereof, and those sections shall have effect accordingly :

Provided that, for the purposes of the said section six as applied by this section, the expression "inspector" shall mean an inspector of gas meters under the Sale of Gas Act, 1859.

Meters to be
stamped.

13. All meters by means of which gas is supplied by any undertakers to any consumer shall be stamped in accordance with regulations made by the Board of Trade under their powers in that behalf, and if any undertakers supply gas by means of any meter which is not so stamped, they shall be liable on summary conviction to a fine not exceeding ten pounds.

Qualification
for appoint-
ment as
inspector of
meters.

14.—(1) The Board of Trade shall provide for the holding of examinations for the purpose of ascertaining whether applicants for the post of inspector of meters under section four of the Sale of Gas Act, 1859, nominated by the appointing authority, possess sufficient practical knowledge for the proper performance of the duties of that post, and for the grant of certificates to persons who satisfactorily pass such examination.

(2) A person shall not, after the passing of this Act, be appointed to act as an inspector of meters as aforesaid unless he has obtained such certificate as aforesaid.

(3) If any person, not being an inspector duly appointed under the Sale of Gas Act, 1859, acts as such inspector, he shall be liable to a fine not exceeding ten pounds, or, in the case of a second or subsequent offence, twenty pounds.

(4) There shall be charged in respect of the examinations under this section such fees as the Board of Trade, with the concurrence of the Treasury, from time to time fix, and all such fees shall be dealt with in such manner as the Treasury from time to time direct.

15.—(1) All gas undertakers shall furnish to the Board of Trade at such times and in such form and manner as the Board may direct an annual account, and such statistics and returns as the Board may require. Accounts and returns.

(2) Within seven days of the date on which the annual account is sent to the Board of Trade the undertakers shall furnish a copy thereof to the local authority, and shall place copies on sale at their principal office at a price not exceeding one shilling per copy.

(3) If any undertakers fail to comply with the provisions of this section, they shall be liable on summary conviction to a fine not exceeding forty shillings for each day during which the default continues.

(4) The provisions of this section shall be substituted for the provisions of section thirty-eight of the Gasworks Clauses Act, 1847, and of section thirty-five of the Gasworks Clauses Act, 1871, in so far as such provisions are incorporated in the special Act of the undertakers. 34 & 35 Vict. c. 41.

16.—(1) The Board of Trade may make rules in relation to applications and other proceedings under this Act and to the payments to be made in respect thereof, and to the publication and service of notices and the publication of advertisements, and the manner in which and the time within which representations or objections with reference to any application or other proceeding are to be made, and to the holding of inquiries in such cases as they may think it advisable and to the costs of such inquiries, and to any other matters arising in relation to their powers and duties under this Act. Power to make rules

(2) Any rules made in pursuance of this section shall be laid before Parliament as soon as may be after they are made and shall have the same effect as if enacted in this Act.

17. All things required or authorised under this Act to be done by the Board of Trade, may be done by the President or Secretary or Assistant Secretary of the Board, or any person authorised in that behalf by the President of the Board. Exercise of powers of Board of Trade.

18. For the purposes of this Act—

Definitions.

The expression “local authority” means the common council of the City of London and any county, county borough, or urban district council, and in relation to any gas undertaking means any such local authority the whole or any part of whose area is within or partly within the limits of supply of the undertakers;

The expression “gas undertakers” or “undertakers” means any local authority, company, body or person authorised to supply gas by any Act of Parliament, or any order having the force of an Act of Parliament;

The expression "quarter sessions" in relation to any undertaking means the court of quarter sessions for the county, division or place in which the gasworks of the undertaking are situate.

Supersession
of existing
enactments.

19. Any provisions of this Act or any order made thereunder shall have effect in lieu of any provisions to the same effect or inconsistent therewith in any Act relating to the testing of gas-measuring instruments, or in any Act or order having the force of an Act relating to an undertaking with respect to which an order has been made under this Act.

Expenses of
local authori-
ties.

20. The expenses of a local authority under this Act shall be defrayed, in the case of the common council of the City of London out of the general rate, in the case of a county council as payments for special county purposes made in respect of the parishes which are wholly or partly within the limits of supply of any gas undertakers in respect of which the county council have power to appoint a gas examiner, and in the case of other councils as expenses incurred in the administration of the Public Health Acts, 1875 to 1908.

Application
to Scotland
and Ireland.

21.—(1) In the application of this Act to Scotland references to the sheriff shall be substituted for references to quarter sessions, the expression "local authority" means the county council and the town council, and the expenses of a local authority under this Act shall be defrayed, in the case of a county council, out of the general purposes rate, provided that, notwithstanding anything in the Local Government (Scotland) Act, 1889, the ratepayers of any police burgh shall not be assessed by the county council for any such expenses, and in the case of a town council out of the burgh general assessment or police rate.

52 & 53 Vict.
c. 50.

(2) In the application of this Act to Ireland a reference to the Public Health (Ireland) Acts, 1878 to 1919, shall be substituted for the reference to the Public Health Acts, 1875 to 1908, and the expenses of a county council shall be defrayed out of the county fund and raised as a district charge or district charges over any county district or districts which are wholly or partly within the limits of supply of any gas undertakers in respect of which the county council have power to appoint a gas examiner.

Short title.

22. This Act may be cited as the Gas Regulation Act, 1920.

Section 11,

SCHEDULE.

PROVISIONS OF THE FACTORY AND WORKSHOP ACT, 1901,
APPLIED TO SPECIAL ORDERS MADE UNDER THIS ACT.

80.—(1) Before the Board of Trade make any special order under this Act, the undertakers concerned shall publish, in such manner as the Board may think best adapted for informing persons affected,

notice of the application for the order, and of the place where copies of the draft order may be obtained, and of the time (which shall be not less than twenty-one days) within which any objection made with respect to the draft order by or on behalf of persons affected must be sent to the Board of Trade.

(2) Every objection must be in writing and state—

(a) The specific grounds of objection; and

(b) the omissions, additions, or modifications asked for.

(3) The Board of Trade shall consider any objection made by or on behalf of any persons appearing to them to be affected which is sent to them within the required time.

(4) Where the Board of Trade do not amend or withdraw any draft order to which any objection has been made, then (unless the objection either is withdrawn or appears to them to be frivolous) they shall, before making the order, direct an inquiry to be held in the manner hereinafter provided, and may, after considering the report of the person who held the inquiry, make the order either without modification or subject to such modification as they think fit, or may refuse to make the order.

81.—(1) The Board of Trade may appoint a competent and impartial person to hold an inquiry with regard to any draft order, and to report to them thereon.

(2) The inquiry shall be held in public, and any objector and any other person who, in the opinion of the person holding the inquiry, is affected by the draft order, may appear at the inquiry either in person or by counsel, solicitor, or agent.

(3) The witnesses on the inquiry may, if the person holding it thinks fit, be examined on oath.

(4) Subject as aforesaid, the inquiry and all proceedings preliminary and incidental thereto shall be conducted in accordance with rules made by the Board of Trade.

(5) The fee to be paid to the person holding the inquiry shall be such as the Board of Trade may direct.

CHAPTER 29.

An Act to authorise the granting of Credits and the undertaking of Insurances for the purpose of re-establishing Overseas Trade. [9th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) For the purpose of re-establishing trade or any branch of trade between the United Kingdom and any country, being one of the countries specified in the Schedule to this Act, the Board of Trade, with the consent of the Treasury, and after consultation with an advisory committee to be constituted by the Board of Trade for the purposes of this Act, may, where it appears

Power of Board of Trade to grant credits and under-take insurance.